

Ramashrey v. Chandresh Upadhyay

High Court of Judicature at Allahabad · Single Judge · 14 August 2018 · Contempt Application (Civil) No. 4218 of 2018 · **Contempt disposed; two months further time to decide the clause 6.5 objection.**

HEADNOTE

On a civil contempt application for non-decision of an objection under clause 6.5 of the Electricity Supply Code, 2005, as directed in Writ Petition No. 7104 of 2018, the Court recorded a prima facie case of willful disobedience of the 28 February 2018 order, issued no notice, granted two months further time to comply, and disposed of the application with liberty to re-approach if the objection remained undecided. The billing dispute was not decided.

FACTUAL SUMMARY

Ramashrey had filed Writ Petition No. 7104 of 2018 challenging orders dated 29.8.2017 and 3.11.2017. On 28.2.2018 the High Court declined to quash those orders but directed respondent no. 2 to decide the petitioner's 13.2.2018 objection under clause 6.5 of the Electricity Supply Code, 2005, preferably within six weeks of production of a certified copy. Alleging that despite service no decision had been taken, the consumer filed this civil contempt application against Chandresh Upadhyay.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of direction to decide clause 6.5 objection

HOLDING

Where the parent writ had declined to quash the 29.8.2017 and 3.11.2017 orders and directed respondent no. 2 to decide the consumer's 13.2.2018 objection under clause 6.5 of the Electricity Supply Code, 2005, the contempt court recorded a prima facie case of willful disobedience for non-decision, issued no notice, granted two months further time from receipt of a certified copy to comply, and disposed of the contempt application with liberty to re-approach if the objection remained undecided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 OBJECTION AND OF THE 29.8.2017 AND 3.11.2017 ORDERS

The parent writ had already declined to quash those orders and only directed a 6.5 decision; this contempt order likewise does not decide the billing dispute. ¶ 1

NOT DECIDED — WHETHER TO PUNISH THE OPPOSITE PARTY FOR CONTEMPT

A prima facie case of willful disobedience was recorded, but no notice was issued and two months further time was granted. ¶ 1